Document Number	Stormwater Management Facilities Maintenance Agreement Document Title

TI Investors of Lakeview Nitto Parcel LLC, as "Owner" of the property described below, in accordance with Village Ordinances agrees to install and maintain stormwater management practice(s) on the subject property in accordance with approved designed construction and stormwater management plans. The owner further agrees to the terms stated in this document to ensure that the stormwater management practice(s) continue serving the intended functions in perpetuity. This Agreement incudes the following exhibits:

Exhibit A: Legal Description of the real estate for which this Agreement applies ("Property").
Exhibit B: Location Map(s) shows an accurate location of each stormwater management facility affected by this Agreement.
Exhibit C: Maintenance Requirements – Prescribes those activities that must be carried out to maintain compliance with this Agreement.

Recording Area

Name and Return Address

Village of Pleasant Prairie
9915 39th Avenue
Pleasant Prairie, WI 53158

insert

Parcel Identification Number (PIN)

Through this agreement, the Owner hereby subjects the Property to the following covenants, conditions and restrictions:

1. The stormwater management facilities, identified in Exhibit B shall be constructed by the Owner, in accordance with the approved plans and specifications to meet the purpose and function for which the facilities were designed for.

2. The Owner shall be responsible for the maintenance and repair of the stormwater management facilities.

3. Upon written notification by the Village of Pleasant Prairie or their designee, the Owner shall, at their cost and within a reasonable time period determined by the Village of Pleasant Prairie have an inspection of the stormwater management facilities conducted by a qualified professional, file the professional's inspection report with the Village of Pleasant Prairie which shall be subject to the Village's approval and complete any maintenance or repair work recommended in the report.

The Owner shall be liable for damages, remediation, and any other costs resulting from failure to undertake any maintenance or repairs.

4. In addition, and independent from the requirements of paragraph 3, above, the Village, or its designee, is authorized to access the Property as necessary to conduct inspections of the stormwater management facilities or drainage easement to ascertain compliance with the intent of the Agreement and the activities described in Exhibit C and any applicable addenda that are subsequently made part of this Agreement. The Village may require work to be done which differs from the report described in paragraph 3, if the Village reasonably concludes that such work is necessary and consistent with the intent of this Agreement. Upon notification by the Village of Pleasant Prairie of required maintenance or repairs, the Owner shall complete the specified maintenance or repairs within a reasonable time period determined by the Village.

5. If the Owner does not complete an inspection under paragraph 3, above, or required maintenance or repairs under paragraph 4, above, within the specified time period, the Village of Pleasant Prairie is authorized, but not required, to perform the specified inspections, maintenance or repairs. In case of emergency situation, as determined by the Village, no notice shall be required prior to the Village of Pleasant Prairie performing emergency maintenance or repairs. The Village of Pleasant Prairie may levy the costs and expenses of such inspections, maintenance or repairs related actions as a special charge against the Property and collected as such in a accordance with the procedures under s. 66.0627 Wis.Stats. or subsch. VII of ch. 66 Wis. Stats.

6. No changes or amendments to this Stormwater Management Facilities Maintenance Agreement may be made without written approval from the Village of Pleasant Prairie. The Village of Pleasant Prairie may update the maintenance requirements required in this Agreement based upon any physical modifications or deficiencies to the stormwater management facilities and drainage easements described herein. Any such updates shall be reasonable in nature and limited in scope to what is required to repair, maintain, or update the stormwater management facilities as required by the Village. Any such updates shall be made part of this agreement by recording an updated Exhibit B and/or Exhibit C in the office of the Kenosha County Register of Deeds and giving notice thereof to the Owner.

7. This Agreement shall run with the Property and be binding upon all heirs, successors and assigns. Such heirs, successors and assigns shall be the “Owner” as herein.

[SIGNATURE PAGE FOLLOWS]

Executed by the Owner on this _____day of _____,202____..

OWNER: TI Investors of Lakeview Nitto Parcel LLC

By: _____

Name:

Title:

ACKNOWLEDGEMENT

STATE OF WISCONSIN)
) ss.
COUNTY OF KENOSHA)

Personally came before me this ____ day of _____, 202___ the above-named _____, to me known to be the persons who executed the foregoing instrument and acknowledged the same.

_____
*_____Notary Public
Kenosha County, WI
My Commission expires:_____

This instrument was drafted by:
Kurt Davidsen
Village Engineer
9915 39th Avenue
Pleasant Prairie, WI 53158

Exhibit A (Attached)
Exhibit B (Attached)
Exhibit C (Attached)

EXHIBIT A

Legal Description of Property

Parcel 9 of CSM 2273 located of the SE ¼ of the NW ¼ of Section 27, and the SE ¼ of the NE ¼ of Section 28, in Township 1 North, Range 22 East of the fourth principle meridian, in the Village of Pleasant Prairie, County of Kenosha, State of Wisconsin, recorded in the office of the Register of Deeds for Kenosha County, Wisconsin, as Document No.1239083.

EXHIBIT B

Location of Easement
(see attached)

EXHIBIT C

Maintenance Requirements
(see attached)

EXHIBIT C
Maintenance Requirements

This exhibit explains the basic function of each of the stormwater practices listed in Exhibit B and prescribes the minimum requirements to remain compliant with this Agreement. The maintenance activities listed below are aimed to ensure facilities continue serving their intended function in perpetuity. The list of activities is not all inclusive but rather indicates the minimum type of maintenance that can be expected for each facility.

WET RETENTION BASIN AND VEGETATIVE DRY RETENTION BASIN

System Description:
The basins are designed to remove at least eighty-percent (80%) of the Total Suspended Solids (TSS) in the site runoff and to reduce post-developed peak stormwater runoff flow rates. To function correctly, the pond size, depth, water level and outlet structure must be maintained. All basin features are to be maintained as part of this agreement including embankments, outlet control pipes and structures, vegetation, emergency spillways, rip-rap, and pond liners.

Minimum Maintenance Requirements:

To ensure the proper function of the retention basin(s), the following activities must be completed.

A. Routine Maintenance

1. Outlet Structure. All outlet structures and associated pipes must be checked to ensure there is no blockage from debris or ice in front of the orifices and debris grates. Any blockages must be removed immediately. Minimum inspection intervals is once per month for blockages.

2. Storm Water Inlet Locations. All inlet storm sewers discharging runoff into the basin shall be free of obstructions such as trees, sediment piles, or other blockages, and the rock rip-rap adequately placed and maintained to prevent erosion. Minimum inspection interval is once per year.

3. Trees / Woody Vegetation. No tree are to be planted or allowed to grow on the earthen berms. Tree root systems can reduce soil compaction and cause embankment failure. Any woody vegetation must be removed. Minimum inspection interval is once per year.

4. Vegetation. Side slopes, embankments, and emergency spillways (that are not rock lined) and areas which have been planted with turf grass shall be regularly mowed and adequate vegetative cover maintained in good condition. Any areas

of bare of vegetation shall be restored to re-establish adequate vegetative cover. Any approved native planting areas shall be maintained in good condition. Minimum inspection interval is once per year.

5. Erosion. All side slopes, embankments, emergency spillways, storm water inlet locations, rock rip-rap, and pond discharge location shall be inspected for erosion, sloughing, and disrepair. Any erosion, sloughing, and disrepair areas shall be immediately repaired. Minimum inspection interval is once per year.

6. Debris and Litter. The retention pond shall be kept free of debris, yard waste, and litter. Any debris and litter shall be immediately removed. Minimum inspection interval is once per month.

7. Nuisance Control. Management strategies shall be implemented to mitigate nuisances, including but not limited, to algae, mosquitoes, invasive plants, muskrats, or other unwanted organisms that negatively impact the pond's health, aesthetics, or function. Minimum inspection interval for nuisances is once per month.

8. Pond Alterations. No filling, grading, or other physical pond alterations are allowed without supporting engineering plans, approval from the Village of Pleasant Prairie, and applicable amendments to the Stormwater Management and Facility Maintenance Agreement. Any unapproved alterations shall immediately be removed and the pond restored to the approved plans and specifications. Minimum inspection interval for pond alterations is once per month.

9. Sediment Removal (wet basin) When sediment in the forebays or the basin has accumulated to an elevation of three feet below the outlet elevation, sediment must be removed and properly disposed of, to re-establish the original pond design depth. Minimum inspection of the pond depth and sediment accumulation is once every five years until sediment accumulation has reached 50% of allowable depth at which time the inspection interval shall be increased to once per year.

10. Sediment Removal (dry basin). Dry basin bottom retention basins shall be examined yearly for excessive sediment buildup; and any deposits that interfere with proper drainage shall be excavated and the area topsoiled and reseeded. At least every ten years a topographic survey of the dry basin shall be completed. At such time as the original capacity is of the basin is decreased by 5% the bottom shall be excavated to restore the original capacity.

B. Structural Repairs

1. Outlet Structure. The outlet structure(s) and associated pipe(s) will deteriorate over time. If structural problems appear, the outlet must be repaired or replaced. Minimum inspection interval for structural integrity is once per year.

2. Embankments. The structural integrity of embankments may be compromised from woody vegetation, erosion, settlement, and burrowing animals. If structural or seepage problems appear, the embankment must be repaired immediately. Minimum inspection interval for structural integrity is once per year.

3. Pond Liner. Wet retention ponds contain a clay or material liner to maintain a permanent pool of water. If problems appear with water loss through seepage or if the liner is damaged, the liner shall be repaired or replaced. Minimum inspection for normal dry weather pond water elevation and evidence of water loss shall be once per year. Visual inspection of the pond liner shall be made whenever the pond is dewatered, and sediment removal operations are completed.

4. Rip-Rap. Rip-rap repair may involve cleaning debris, replacing or adding new rock, regrading slopes, and repairing underlying geotextile fabric to combat erosion. When problems including but not limited to slumping of rocks, scouring, or erosion occur, the rip-rap shall be repaired immediately.